

23PSCV01105 23PSCV01105

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-09

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Case Number: 23PSCV01105 Hearing Date: September 9, 2026 Dept: O

Tentative Ruling

NOTICE OF MOTION AND MOTION FOR TERMINATING SANCTIONS AGAINST DEFENDANTS ZENGLE WANG AND XIUWEI LI (STRIKING ANSWER AND ENTERING DEFAULT) is TBD at the hearing/likely granted.

Background

This case arises from an unpaid loan (excluding interest) of \$300,000.

On April 14, 2023,

Plaintiffs SHILAN ZHAO and YIIXIN QIAO filed suit against Defendants ZENGLE WANG and XIUWEI LI.

On October 31, 2023,

Plaintiffs filed a first amended complaint (FAC) for:

1. BREACH OF CONTRACT;
2. FRAUD;
3. CIVIL CONSPIRACY;
4. CONVERSION;
5. PROMISSORY ESTOPPEL;
6. UNJUST ENRICHMENT;

7. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS.

On November 30, 2023, Defendants filed their answer.

On December 4, 2023, there was a CMC; there was defense counsel present.

On May 2, 2024, the parties attended another CMC.

On November 7, 2024, the parties attended an MSC.

On September 15, 2025, a CMC was held. The minute order (MO) Indicated that discovery is still ongoing.

On February 26, 2026, the defendants filed substitutions of attorney indicating that they would represent themselves.

On March 11, 2026, a CMC was held; the defendants attended. "The Defendants make an oral request for a continuance in order to retain an attorney."

On June 11, 2026, there was a status conference; the defendants did not appear. The court set an Order to Show Cause Re: Why the Court Should Not Issue Monetary Sanctions Against the Defendants for Their Failure to Appear at the Status Conference on 06/11/2026 is scheduled for 09/21/2026 at 09:00 AM in Department O at Pomona Courthouse South. The minute order also "direct[ed] Counsel for Plaintiff to file a formally noticed motion prior to the next hearing if they would like to seek further court action aside from monetary sanctions."

On June 22, 2026, the instant motion was filed, along with a motion for leave to file an amended complaint.

To date, as of 9/4/26, no opposition has been filed (due 9 court days before the hearing).

Discussion

Plaintiffs seek that the court strike Defendants' answer and enter default "on the grounds that Defendants have engaged in a willful and continuing pattern of failing to participate in this litigation and to obey the orders of this Court including, without limitation, Defendants' failure to appear at the Status Conference Re: Defendants' Representation on June 11, 2026, and their failure to file the declarations the Court directed them to file such that no sanction short of a terminating sanction will cure the prejudice to Plaintiffs or secure Defendants' compliance."

As framed by the Slesinger court, "The essential requirement is to calibrate the sanction to the wrong." (Id. at p. 755.) Here, the wrong has been an effective abandonment of the case, and that is further evidenced by the failure of Defendants to file an opposition to this motion. With that, the court is inclined to grant the motion.

Conclusion

Based on the foregoing, the motion is TBD at the conclusion of the hearing/likely granted .